



Stephen Cooke <stephencooke.c@gmail.com>

FW: Cooke & Cooke

6 messages

Matthew Shepherd <mshpherd@ramsdenlaw.com.au>
To: "Mr Stephen Cooke (Client)" <stephencooke.c@gmail.com>

Tue, Jun 4, 2024 at 9:50 AM

Dear Stephen

See email below and attached from other side re an interim application filed by Heather. Also see my notes further down re your emails of yesterday re the sale process.

Heather has filed an application in a case seeking the Orders outlined below with my comments. It has been given a return date in the Newcastle Family Court of 23 July 2024.

It seeks the following Orders:

1. That Robinson Property and Kent conveyancing act on the sale.

You and I have previously indicated that you are ok with this and they have started work. Presuming you are ok to proceed with them, this is not controversial. We can invite Heather to withdraw this part of the application or submit to the Court that this is sought Order is unnecessary.

2. That Heather provide a copy of "these Orders" (being the new Orders she wants) to the Robinson and Kent. This is a bit pointless. Neither of you are restrained from providing Orders to the parties involved in the sale.
3.
 - a. That the house be professionally cleaned. We have already indicated your willingness to do so. So this is pointless.

- b. That you pay the costs.
- 4. That you pay the invoices from Caslick, and Armstrong Property.
- 5. That the April financial orders be amended to provide that Heather pay home loan etc and that you reimburse her 50% from your \$200,000.
- 6. That you jointly seek from Westpac that all loan repayments be suspended. We have already indicated that you are agreeable to Heather continue paying at the od level.
- 7. That the spousal maintenance be reduced to \$500 per week.
- 8. That you pay Heather's costs on an indemnity basis.

The approach of the Court to the payments of the mortgage, other house costs and spousal maintenance will probably be:

- a. You both agreed to the April interim financial Orders. Heather must have considered she could pay at that time. Therefore, why should they be changed? The answer to this question might partially depend on whether you seek to vary the Orders. The more you might do so the more it assist Heather get over this initial question.
- b. Her capacity to pay back in April and now.
 - i. Her first financial statement of 4/2/24 said she had weekly gross income of \$9,190 and expenditure of \$9,384 including the amounts listed below. She thus had a shortfall of \$194.
 - 1. Tax \$3,551

2. Voluntary super to both you and she of \$36,742 or \$707 p/w. She could save her shortfall and more by reducing these (and I presume she has stopped paying any super for you).
3. Mortgage \$1,253 for Mereweather and \$471 for Southport.
4. It did not show any rent – which would increase her expenses and thus shortfall.

ii. Her second financial statement of 24/4/24 shows income of \$10,039 and expenses of \$11,470 (shortfall \$1,431 p/w, with the expenses being \$2,086 more than in her first financial statement. Two reasons are rent of \$800 and legal expenses of \$1,250) with expenses including:

1. Tax \$3,953
2. Voluntary super for herself of \$606
3. Rent \$800
4. Mortgage etc
5. Item 32 – other expenditure \$3,275 – go to list of these items at p 13. It includes legal fees of \$1,250.
6. It does not \$1,200 spousal maintenance to you

iii. Her new attached financial statement of 31.5.24 shows income of \$10,082 and expenses \$11,320. These expenses however include spousal maintenance to you of \$1,200. It shows at item 32 other expenditure of \$1,925 which does not include legal fees (presumably she has paid them from capital as you have).

The questions for the court are:

1. Should it reconsider spousal maintenance at all given it was agreed as recently as April. The answer to this question might partially depend on whether you seek to vary the Orders. The more you might do so the more it assist Heather get over this initial question.
2. If it is to be reconsidered:
 - a. does she correctly show her expenses?
 - b. And can they be reduced?
 - c. If they are correctly shown and cannot be reduced, should the level of mortgage payments be reduced or the level of spousal maintenance or both?

c. The court would also consider:

- i. your reasonable expenses. Your second financial statement of 27.3.24 shows at B of item 2 at top of page 2 shows nil personal expenditure. This is consistent with Part D pages 3 and 4. Item 60 shows expenditure of \$1,457 which is not reflected at item 2 or Part D. We will need to redo your financial statement, Your earlier financial statement shows the same.
- ii. Your income and your potential income earning capacity. Your financial statement shows no income. We will need to update your evidence as to what steps you have taken to obtain employment.

Most or all of these issues might be redundant if the house is on the market; and if we can get financial disclosure so the mediation could proceed prior to 23 July.

Your recent emails re sale

If I read these correctly, you are willing to proceed with Mike Flook/Robinson.

The issues are:

- a. Payment of marketing and advertising costs. On the basis of the April Orders (which continue notwithstanding Heather's application to vary.
- b. Payment of styling. Her solicitor sent an email last week saying Heather agreed with her to pay in first instance.
- c. When the cleaner, stylist and photographer might attend.
- d. Painting of front exterior – does this need strata approval? Another email from you indicated you were willing to concede the painting.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

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PERSPECTIVE

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From: Jill Rukin <jrukin@delaneyroberts.com.au>

Sent: Monday, June 3, 2024 4:53 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Cc: Tayleh Soames <tsoames@delaneyroberts.com.au>; Olivia Shedden <oshedden@delaneyroberts.com.au>; Anna Roberts <aroberts@delaneyroberts.com.au>

Subject: Cooke & Cooke

You don't often get email from jrukin@delaneyroberts.com.au. [Learn why this is important](#)

Dear Colleagues,

We refer to the above matter and previous correspondence.

Please find **attached** by way of service the following documents:

1. Application in a Proceeding filed 31 May 2024,
2. Amended Financial Statement filed 31 May 2024,

3. Affidavit of Heather Cooke filed 31 May 2024, and
4. Tender Bundle for Affidavit of Heather Cooke filed 31 May 2024.

Please do not hesitate to contact me should you wish to discuss this matter.

Yours faithfully

JILL RUKIN

Senior Paralegal



T 02 4952 3901

E jrukin@delaneyroberts.com.au

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4 attachments

Application in a Proceeding filed 31.05.24.pdf
1103K



Tender Bundle for Affidavit of Heather Cooke filed 31.05.24.pdf
1189K



Amended Financial Statement filed 31.05.24.pdf
883K



Affidavit of Heather Cooke filed 31.05.24.pdf
6414K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Wed, Jun 5, 2024 at 2:35 AM

Hi Matthew;

Some preliminary work with respect to my thoughts in a subsequent affidavit filled by me.

Summary based upon evidence below: The painter, handyman and the agent had access and attended to the property for works the week of April 22 (Agent and Painter). Handyman the following week on May 1st.

Timeline Summary of events:

- Initial meeting with Mike took place on Monday April 22 2024, this is the date I believe the photos were taken, it was the 1st in-person inspection with Mike at the marital home. I advised Mike prior to this meeting, I wish to schedule for later in the week as I had the boys over the weekend necessitating much needed cleaning up after Monday school drop off.

- Page 8 of Heather's affidavit notes an email dated Thurs April 25, 2024 @ 9:46am from Mike to Heather stating photos were taken Wednesday April 24, 2024 quote Mike "Not sure Stephen is the best person to leave the cleaning to. Needs a professional clean.." This is the 1st derogatory comment Mike had made about me to Heather. Mike only met me for the 1st time a couple of days ago for a very brief meeting.

- The timely presentation of letter dated May 14 2024 from Delaney Roberts (23 days after the photos were captured) suggests the property is in the state "requiring a deep clean" and that the agent does not believe Stephen is capable of cleaning the property.

- Wed, May 15, 2024 at 10:55 AM - I received an email from my previous lawyer at Clarity Lawyers, stating that I was in breach of orders. I had been ignoring communications from Clarity Lawyers during this week because, during a phone call with Jacqueline on the previous Friday (10/05/2024), I had fully understood the following:

a) There is an order in effect that prevents my forensic accountant and me from having full disclosure of financials related to the condo and other accounts that I am not associated with.

b) After expressing the need for this level of transparency to effectively mediate, I was informed that it would not be accommodated. I was told that I would need to represent myself, which left me dissatisfied.

c) My request to delay the mediation date of June 18, 2024, was not accommodated. Despite my concerns regarding the financial disclosures protected by the order, I was told that I must attend the mediation on this date.

d) Did not wish to incur further costs - I needed funds to switch council and funds to have a forensic account attend to my matter.

- Wednesday May 1 @ 5:47pm in an email to Heather from Mike (source: Delaney Letter May 14), Mike states "I slept through my appointment" and "My main concern for you in the cleanliness of the property and I don't believe he will be able to do it which is odd given he wants top dollar."

- May 21, 2024, 12:45 PM Outbound call with Meagan Burke, Kent Conveyancing (Phone: 49417474) - During this call, I instructed Meagan to proceed and advised I would submit payment later today. I also explained my hesitation and delay were due to recent concerns I discovered regarding Heather compromising the neutrality of the sales agent selection process for selling the marital home. Specifically, I was worried about:

a) Mike Flook, Robinson Property, who is a patient of Heather's close friend and colleague, Rohan Bhagwandeem.

b) Simon Wall, the realtor involved with Heather's current rental, who is likely very familiar with Heather's version of events surrounding our separation.

- Per "0_Wednesday May 22 - Email from Mike regarding status of the property.pdf" Agent Mike notes he has visited the property and "I met with Stephen today at 11.30am and the property is looking really good. We spoke about a suitable go forward plan and agreed on the following.

Regarding Heather's Affidavit:

j. On 28 May 2024, the Agent phoned me and said words to the effect of "I have spoken to Stephen earlier today and he told me that you would have to take him back to Court to get any further progress on the sale" - I did not make this statement, nor do I feel this way regarding the sale of the property. I am in a position where I need to sell the marital home. This statement contradicts my actions, as I have facilitated access and arranged for agents and tradespeople to prepare the home for sale.

I do recall, around this time, expressing my frustration to the agent about what I perceived as Heather's unwillingness to prepare the home. Specifically, Heather was not behaving as a reasonable person would, as she declined staging/styling or spending a small amount of money to paint the front-facing exterior of the home. Two other agents had informed me that these actions would impact the sale price by at least \$100,000. Additionally, I was frustrated by being held wholly responsible for invoices related to repairs for damage that occurred during our relationship, from the events of December 2nd, or before I had signed the orders.

See emails where I

Follow me on LinkedIn: www.linkedin.com/in/stephen-cooke-b853702ab

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshpherd@ramsdenslaw.com.au>

Wed, Jun 5, 2024 at 2:41 AM

Is the reason Heather has asked the court to appoint both Kent Conveyancing and Robinson because they are uncomfortable proceeding without official endorsement knowing what is known?

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Neill Cooke <cooke.neill@gmail.com>

Wed, Jun 5, 2024 at 2:42 AM

See below.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Wed, Jun 5, 2024 at 3:02 AM

In any event, my goal with the latest application is to do as you suggested and do everything we can to increase the success in application for costs being granted if it comes to that.

Stephen.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Wed, Jun 5, 2024 at 3:04 AM

Also, when you have a chance today, I was hoping to review with you, the way this seems to be moving along. Knowing Heather better, what you think I'm looking by way of settlement depending how I handle this.

Warm regards,

Stephen

On Wed, 5 June 2024, 8:41 am Stephen Cooke, <stephencooke.c@gmail.com> wrote:

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